

26VECV00727 26VECV00727

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-09-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C09%2F24%2F2026

Source SHA-256: 03ce39894202bf0442978a0aaa7a97ad8f7f5e342ab46702d81d9d90a7f03c61

Case Number: 26VECV00727 Hearing Date: September 24, 2026 Dept: T

26VECV00727 Williams v Woodland Townhomes

[TENTATIVE] ORDER: Plaintiff Alexandra Williams' Demurrer to the First Amended Answer is OVERRULED except the Demurrer is SUSTAINED WITH 20 DAYS LEAVE TO AMEND only as (1) to the argument based upon Code of Civil Procedure, section 431.30(g) and (2) the argument against the Second and Fourth Affirmative Defenses requiring the pleading of facts to support that their acts/omissions were made within its discretion, with good faith, and/or with reasonable investigation. Leave to amend is limited to curing the pleading defects identified below and not to add new Affirmative Defenses.

Introduction

Plaintiff Alexandra Williams (Plaintiff) demurred to Defendant Woodland Townhomes Condominium Owners' Association (Defendant) First Amended Answer (FAA). Plaintiff demurred against all Affirmative Defenses (AD) except the twelfth AD for Statute of Limitations.

Discussion

Plaintiff argued that each AD failed to identify which cause of action (COA) the defense answers. (Code Civ. Proc., sec. 431.30(g).) Defendant asserted that the policy of liberally reading pleadings allows this Court to infer that when the COA is not identified that the AD applies to all COAs. Defendant did not present any legal authority to support the contention. Without legal authority, the Court does not find the argument to be persuasive. The Court does not interpret the policy of liberally reading pleadings to outweigh an express statutory requirement. On the pleading defect identified by Plaintiff, the ADs at issue are defectively pled and there is good cause to sustain the demurrer. If each AD was intended to apply to every COA, then Defendant should probably have stated that in the caption of the ADs.

The Demurrer to all ADs, except the twelfth AD, is SUSTAINED as to the argument grounded upon Code of Civil Procedure, section 431.30(g) is SUSTAINED. Each AD should state to which cause of action(s) it applies.

Plaintiff asserted that all ADs, except the twelfth AD, failed to plead supportive facts and only alleged legal conclusions. However, Plaintiff failed to present argument specific to each AD. A generalized contention that all ADs lack factual support is insufficient. A judge in a civil case is not "obligated to seek out theories [a party] might have advanced, or to articulate for him that which ... [a party] has left unspoken." (Mesecher v. County of San Diego (1992) 9 Cal.App.4th 1677, 1686.) Plaintiff's demurrer did not identify the pleading element for each AD placed into issue and specifically cite where the AD lacked factual support. At most, Plaintiff only presented specific argument as to the first AD for Failure to State a Cause of Action, the second AD for Business Judgment Rule, the fourth AD for Judicial Deference Doctrine, the fifth AD for Lack of Notice, and

the Eighth AD for Consent.

As to the first AD for Failure to State a Cause of Action, the second AD for Business Judgment Rule, and fourth AD for Judicial Deference Doctrine, Plaintiff asserted that the three ADs lacked any facts to plead how Plaintiff acted outside its discretion, in bad faith, or without reasonable investigation and failed to allege facts to support reference to the Business Judgment Rule under *Lambden v. La Jolla Shores Clubdominium Homeowners Assn* (1999) 21 Cal.4th 249 (*Lambden*).

Preliminarily, the first AD for Failure to State a Cause of Action disputes that the Complaint alleges sufficient facts to support the COAs. Defendant asserted that the Complaint “conflates discretionary governance decisions with actionable misconduct, fails to plead facts establishing breach of duty, causation, or damages, and relies on generalized dissatisfaction with Board outcomes rather than statutory violations”. Because the AD points to the allegations of the Complaint as its “new matter” and describes how the Complaint is defectively pled, the AD for Failure to State a Cause of Action is sufficiently supported by fact pleading. On these allegations, the Demurrer to the first AD is unpersuasive.

It is unclear how the Judicial Deference Doctrine or the Business Judgment Rule per *Lambden* applies to the first AD. The Court does not see the relevance of the allegation. However, the irrelevance of *Lambden* is insufficient to sustain the demurrer because the AD sufficiently alleged supportive facts applicable to the first AD, as reviewed above. Demurrers cannot be sustained as to parts of ADs if the AD is sufficiently pled in other regards.

The Demurrer to the first AD for Failure to State a Cause of Action is **OVERRULED**.

As to the second AD for Business Judgment Rule and the fourth AD for Judicial Deference Doctrine per *Lambden*, the allegations of the FAA asserts that “Plaintiff fails to allege facts showing that Defendant acted outside its discretion, in bad faith, or without reasonable investigation”. However, it is not Plaintiff’s pleading obligation to support Defendant’s AD. Defendant is required to plead facts in support of the Business Judgment Rule and the Judicial Deference Doctrine. Specifically, as to the Judicial Deference Doctrine per *Lambden*, the Doctrine states that the court will defer to the reasonable and good faith exercise of discretion by the Board, where the Board exercises its discretion within the scope of its authority under the applicable statutes, covenants, and restrictions. The two ADs failed to allege facts showing that Defendant’s acts or omissions were insulated from court intervention because their management decisions were made in good faith or made in what the owners or board members believe was in the association’s best interest. Alleging that Plaintiff failed to plead facts showing that Defendant “acted outside its discretion, in bad faith, or without reasonable investigation” is not the standard. It is Defendant who must plead the facts to support their contention that their acts were inside its discretion, in good faith, or with reasonable investigation. The allegation in the FAA has it backwards.

The Demurrer to the second and fourth ADs is **SUSTAINED** with leave to amend.

As to the fifth AD for Lack of Notice, Plaintiff asserted that there are no facts to support the claim that Defendant made decisions in good faith, in a manner believed to be in the best interest of the Association, and after reasonable investigation. However, the allegation must be read in conjunction with the final sentence. Defendant alleged that Plaintiff failed to provide notice of anything that would indicate otherwise. It is not that Defendant is required to plead facts to show good faith, or actions in the best interest of the Association, or reasonable investigation. The AD is about lack of notice and how Plaintiff did not notify Defendant that Defendant acted without good faith, acted without the best interests of the Association, or acted without reasonable investigation. Plaintiff’s argument takes the allegations in the fifth AD out of context and is not persuasive.

The Demurrer to the fifth AD is **OVERRULED**.

As to the eighth AD for Consent, Plaintiff’s argument presented a dispute as to whether Plaintiff consented to Defendant’s misconduct. However, a dispute as to whether consent was given or not is not a proper issue for a Demurrer. For Demurrer purposes, the facts alleged in the pleading are deemed true. The eighth AD expressly alleges that Plaintiff consented to acts/omissions of Defendant and as an alleged example of Plaintiff’s consent, Defendant alleged that Plaintiff performed her own repairs/maintenance. Whether Plaintiff’s acts in repairing/maintaining the common area is truly a form of her consent is

not a proper issue for Demurrer because the argument disputes the veracity of the allegation.

The Demurrer to the eighth AD for Consent is **OVERRULED**.

As to Plaintiff's attempt to argue that the remaining Third, Sixth through Eleventh, Thirteenth through Thirty-Fourth ADs lacked factual support, the Court finds that Plaintiff failed to present argument to specifically identify the pleading element at issue and how the FAA specifically failed to allege supportive facts.

The Demurrer arguing lack of factual support as to the Third, Sixth through Eleventh, and Thirteenth through Thirty-Fourth ADs is **OVERRULED**.

As to the First AD for Failure to State a Cause of Action, the Sixth AD for Third Party Conduct, the Seventh AD for Comparative Negligence, the Seventeenth AD for Comparative Indemnity, the Nineteenth AD for No Standing to Recover Attorney Fees, the Twenty First AD for Plaintiff's Active Negligence, the Twenty-Fifth AD for Impracticability, the Thirty-First AD for Procedural Due Process, the Twenty-Sixth AD for Accord & Satisfaction, the Twenty-Eighth AD for No Dangerous Conditions, the Twenty-Ninth AD for Minor or Trivial Risk, the Thirty-Second AD for Excessive Fines, the Thirty-Fourth AD for Adequate Remedy of Money Damages, Plaintiff argued that these ADs are not affirmative defenses but merely denials. The Court is not persuaded by the argument. Whether the defense is an Affirmative Defense requiring "new matter" or a Denial, it cannot be disputed that an Answer must include the Affirmative Defense or the Denial. The fact that these ADs might be considered as denials are not proper grounds to strike the AD or sustain the demurrer. Even if the ADs could be considered as Denials, pleading the "Denial" is appropriate to be included in the FAA. The argument characterizing the ADs as "Denials" is unpersuasive.

The Demurrer to the above ADs is **OVERRULED**.

As to the Eighth AD for Consent, the Eleventh AD for Waiver, the Thirteenth AD for Unclean Hands, the Fourteenth AD for Laches, the Fifteenth AD for Estoppel, the Twenty-Fourth AD for Detrimental Reliance, and the Thirtieth AD for Assumption of Risk, Plaintiff argued that there is a heightened pleading requirement for these equitable defenses. (*Sofranek v. County of Merced* (2007) 146 Cal.App.4th 1238, 1250; *Mission Housing Development Co. v. City & County of San Francisco* (1997) 59 Cal.App.4th 55, 75; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 141; *Richter v. Adams* (1937) 19 Cal.App.2d 572, 576.) However, none of the cases cited by Plaintiff opine that "equitable defenses" require heightened pleading or specific fact pleading. However, in *Meyer Koulish Co v. Cannon* (1963) 213 Cal.App.2d 419 (Meyer Koulish), the Court of Appeal opined that "[w]aiver is an affirmative defense that must be pleaded with specificity and separately stated." (Id at p. 432.) The fact that the AD of waiver requires specific fact pleading does not mean that all "equitable defenses" requires specific fact pleading. Plaintiff improperly conflated the pleading requirement as to one defense in equity – waiver – to apply to "all" equitable defenses.

The Demurrer based upon a purported "heightened" pleading requirement for "all" equitable defenses, inclusive of the Eighth AD for Consent, the Thirteenth AD for Unclean Hands, the Fourteenth AD for Laches, the Fifteenth AD for Estoppel, the Twenty-Fourth AD for Detrimental Reliance, and the Thirtieth AD for Assumption of Risk is **OVERRULED**.

The Eleventh AD for Waiver alleged that Plaintiff waived any obligations/liabilities against Defendant due to Plaintiff's "knowledge, statements, and conduct". Further, Defendant alleged that Plaintiff waived their claims in the Complaint due to Plaintiff's failure to provide notice and Plaintiff's actions in performing repair and maintenance work without proper authorization from Defendant. (FAA pg. 6:10-15.) The Court finds that the allegations are sufficient to support the waiver defense. Plaintiff appears to dispute that her repairs and maintenance work can be an act that would support waiver. However, the argument disputes the veracity of the allegation. Again, a Demurrer admits the allegations as true. Whether an act of repair or maintenance is truly an act of waiver is not a proper issue for Demurrer. The Demurrer is not persuasive as to the eleventh AD for Waiver.

The Demurrer to the eleventh AD is **OVERRULED**.

Plaintiff argued that the Twentieth AD for a Reservation of Rights is improper because the process to amend an Answer to add new ADs is statutory per Code of Civil Procedure, section 437. However, Plaintiff failed to present any legal authority to support the contention that Code of Civil Procedure, section 437 acts to prohibit Defendant from reserving their right to add new ADs. Nothing in the statute expressly states any such prohibition. Further, the statute only provides for a procedural process to amend a pleading and does not speak to the substance of alleged ADs, let alone a reservation of a right. Without any legal authority to support the contention, the Court does not find the argument persuasive.

The Demurrer to the Twentieth AD is OVERRULED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.